

SENATE No. 754

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the diagnosis and treatment of autism spectrum disorder.

PETITION OF:

NAME:

Dylan A. Fernandes

DISTRICT/ADDRESS:

Plymouth and Barnstable

SENATE No. 754

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 754) of Dylan A. Fernandes for legislation to improve treatment and diagnosis of autism spectrum disorder. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the diagnosis and treatment of autism spectrum disorder.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 29 of chapter 15C of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, in the definition of “disability verification” in
3 line 18, after the words “signed by a physician” the following:-

4 , licensed nurse practitioner, a psychiatric nurse mental health clinical specialist

5 SECTION 2. Section 25 of chapter 32A of the General Laws, as appearing in the 2024
6 Official Edition, is hereby amended by inserting, in the definition of “Pharmacy care” in line 33,
7 after the words “licensed physician” the following:-

8 , licensed nurse practitioner or psychiatric nurse mental health clinical specialist

9 SECTION 3. Said section 25 of chapter 32A, as so appearing, is hereby further amended
10 by inserting, in the definition of "Treatment of autism spectrum disorders" in line 47, after the
11 words “licensed physician” the following:-

12 , licensed nurse practitioner, licensed psychiatric nurse mental health clinical specialist,

13 SECTION 4. Section 10H of chapter 118E of the General Laws, as so appearing, is
14 hereby amended in line 5 by inserting after the words “licensed physician” the following:—

15 , licensed nurse practitioner, licensed psychiatric nurse mental health clinical specialist

16 SECTION 5. Section 47AA of chapter 175 of the General Laws, as so appearing, is
17 hereby amended in the definition of “Pharmacy care” in line 33, by inserting after the words
18 “licensed physician” the following:—

19 , licensed nurse practitioner or licensed psychiatric nurse mental health clinical specialist

20 SECTION 6. Said section 47AA of chapter 175 is hereby further amended by inserting,
21 in the definition of "Treatment of autism spectrum disorders" in line 46, after the words “licensed
22 physician” the following:-

23 , licensed nurse practitioner, licensed psychiatric nurse mental health clinical specialist

24 SECTION 7. Section 8DD of chapter 176A of the General Laws, as so appearing, is
25 hereby amended in the definition of “Pharmacy care” in line 46, by inserting after the words
26 “licensed physician” the following:-

27 , licensed nurse practitioner or licensed psychiatric nurse mental health clinical specialist

28 SECTION 8. Said section 8DD of chapter 176A is hereby further amended by inserting,
29 in the definition of "Treatment of autism spectrum disorders" in line 47, after the words “licensed
30 physician” the following:-

31 , licensed nurse practitioner, licensed psychiatric nurse mental health clinical specialist

32 SECTION 9. Section 4DD of chapter 176B of the General Laws, as so appearing, is hereby
33 amended in the definition of “Pharmacy care” in line 33, by inserting after the words “licensed
34 physician” the following:-

35 , licensed nurse practitioner or licensed psychiatric nurse mental health clinical specialist

36 SECTION 10. Said section 4DD of chapter 176B is hereby further amended by inserting,
37 in the definition of "Treatment of autism spectrum disorders" in line 47, after the words “licensed
38 physician” the following:-

39 , licensed nurse practitioner, licensed psychiatric nurse mental health clinical specialist

40 SECTION 11. Section 4V of chapter 176G of the General Laws, as so appearing, is
41 hereby amended, in the definition of “Pharmacy care” in line 33, by inserting after the words
42 “licensed physician” the following:-

43 , licensed nurse practitioner or licensed psychiatric nurse mental health clinical specialist

44 SECTION 12. Said section 4V of chapter 176G is hereby further amended by inserting,
45 in the definition of "Treatment of autism spectrum disorders" in line 47, after the words “licensed
46 physician” the following:-

47 , licensed nurse practitioner, licensed psychiatric nurse mental health clinical specialist

48 SECTION 13. All policies, contracts and certificates of health insurance subject to
49 section 25 of chapter 32A, section 47AA of chapter 175, section 8DD of chapter 176A, section
50 4CC of chapter 176B, and section 4V of chapter 176G of the General Laws which are delivered,

- 51 issued or renewed on or after January 1, 2027 shall conform with the provisions of this act. Form
- 52 filings implementing this act shall be subject to the approval of the commissioner of insurance.